

25STCV30558 25STCV30558

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-07-06

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C415%2C07%2F06%2F2026

Source SHA-256: e247e439cab6c5fae55ae7ff351d269e4df6b2e5b3326cc6c09dc227138d7c32

Case Number: 25STCV30558 Hearing Date: July 6, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

July 6, 2026

CASE NUMBER

25STCV30558

MOTIONS

Demurrer to Complaint; Motion to Strike

MOVING PARTY

Defendant Leslie Koral

OPPOSING PARTY

Plaintiff Pedro

Onofre

MOTION

Plaintiff Pedro

Onofre ("Plaintiff") brought this action against Defendant Leslie Koral ("Defendant"), alleging Defendant was responsible for injuries Plaintiff sustained resulting from a motor vehicle collision.

Defendant demurs to the fourth cause of action for intentional infliction of emotional distress in Plaintiff's complaint. Defendant also moves to strike the punitive damages allegations in the complaint. Plaintiff opposes the motions.

ANALYSIS

"It is black

letter law that a demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In ruling on a demurrer, the court must "liberally construe[]" the allegations of the complaint. (Code Civ. Proc., § 452.)

"This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant." (Perez v. Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238.)

Any party, within

the time allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322(b).)

On a motion to strike, the court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a)-(b); Stafford v. Shultz (1954) 42 Cal.2d 767, 782.)

Plaintiff's fourth

cause of action is for intentional infliction of emotional distress. "The elements of the tort of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community. The defendant must

have engaged in conduct intended to inflict injury or engaged in with the realization that injury will result.” (Potter v. Firestone Tire & Rubber Co. (1993) 6 Cal.4th 965, 1001, internal quotations and citations omitted.)

In this regard, Plaintiff alleges Defendant collided with Plaintiff’s vehicle and, thereafter, left the scene of the accident. (Complaint, Fourth Cause of Action.) While leaving the scene of an accident without rendering aid is intentional conduct, it is independently actionable only if the defendant doing so was a proximate cause of further injury or death beyond the accident itself. (See Brooks v. E.J. Willig Truck Transp. Co. (1953) 40 Cal.2d 669, 678-679 [“One who negligently injures another and renders him helpless is bound to use reasonable care to prevent any further harm which the actor realizes or should realize threatens the injured person”].) Plaintiff does not allege he sustained additional injuries because Defendant left the scene of the accident. Accordingly, the Court sustains the demurrer as to this claim. However, it will provide Plaintiff with an opportunity to amend the cause of action.

As the Court sustains the demurrer to the fourth cause of action, the motion to strike the associated prayer for punitive damages is moot. However, to the extent it is not moot, the Court grants the motion to strike.

In ruling on a motion to strike punitive damages, “judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) To state a prima facie claim for punitive damages, a plaintiff must allege the elements set forth in the punitive damages statute, Civil Code section 3294. (College Hospital, Inc. v. Superior Court (1994) 8 Cal.4th 704, 721 (College Hospital).) Pursuant to Civil Code section 3294, subdivision (a), a plaintiff must allege the defendant has been guilty of oppression, fraud, or malice. “Malice is defined in the statute as conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (College Hospital, supra, 8 Cal.4th at p. 725.) “The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be

circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim.” (Grieves v. Superior Ct. (1984) 157 Cal.App.3d 159, 166, internal citations and footnotes omitted.)

In the instant case, Plaintiff fails to allege specific facts to establish Defendant acted with oppression, fraud, or malice. Accordingly, Plaintiff must amend such allegations concerning punitive damages.

CONCLUSION AND ORDER

Defendant’s demurrer to the fourth cause of action is sustained with leave to amend. To the extent it is not moot, Defendant’s motion to strike is granted with leave to amend.

Plaintiff is to file an amended complaint within 20 days of notice of the Court’s order.

Defendant is ordered to provide notice of the Court’s ruling and to file proof of service of same.